

(S E R V E D)
(OCTOBER 6, 2009)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

DOCKET NO. 06-11

**R.O WHITE & COMPANY, INC.
CERES MARINE TERMINALS, INC.**

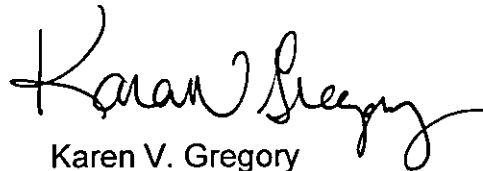
v.

**PORT OF MIAMI TERMINAL OPERATING COMPANY, L.L.C.,
CONTINENTAL STEVEDORING & TERMINALS, INC.,
FLORIDA STEVEDORING, INC., P&O PORTS NORTH AMERICA, INC.,
P&O PORTS FLORIDA, INC., ELLER-ITO STEVEDORING COMPANY L.L.C.,
DANTE B. FASCELL PORT OF MIAMI-DADE, aka MIAMI-DADE
COUNTY SEAPORT DEPARTMENT, MIAMI-DADE COUNTY**

NOTICE NOT TO REVIEW

On August 7, 2009, Notice of Extension of Time to File Exceptions and Replies was issued in this proceeding in response to an unopposed request of the Complainants. The time in which to file exceptions and supporting briefs to the Administrative Law Judge's Initial Decision was extended to September 18, 2009 and the time for filing replies to exceptions was extended to November 9, 2009. Subsequent to this Notice, Complainants advised that they would not be filing exceptions in this docket. The time for filing exceptions has passed, and no exceptions were filed.

Notice is given that the time within which the Commission could determine to review the July 28, 2009 Initial Decision in this proceeding has expired. Accordingly, the decision has become administratively final.

A handwritten signature in black ink, appearing to read "Karen Gregory", with a stylized, flowing script.

Karen V. Gregory
Secretary